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“WEAK THOUGHT” AND THE REDUCTION OF VIOLENCE

A Dialogue with Gianni Vattimo

Gianni Vattimo and Santiago Zabala

Translated by Yaakov Mascetti

Santiago Zabala: In your book *The Vocation and Responsibility of the Philosopher*, you say that “philosophy is more an edifying discourse than a demonstrative one, more oriented toward the edification of humanity than toward the development of knowledge and progress.” You say also that “the duty of the philosopher no longer corresponds to the Platonic agenda: the philosopher is no longer humanity’s guide to understanding the Eternal; rather, he redirects humanity toward history.” Are these the meaning and direction of what you have termed—in books, in articles, in public debates—“weak thought”?

Gianni Vattimo: I would say that “weak thought,” *pensiero debole*, can now be defined in more precise terms. It is as you describe it, of course; but not only as you describe it. Its content is an *ontology* of weakness. “Weak thought” is by no means a weakness of thinking as such. It is just that, because thinking is no longer demonstrative but rather edifying, it has become in that restricted sense weaker.

Zabala: In which case, “strong” is a negative description. In *The End of Modernity*, published nearly twenty years ago, you say, in the context of discussing “weak thought,” that we now require “a fictionalized experience of reality”—and that this experience “is also our only possibility of freedom.” You have said too that, during the waning of modernity, our experience of unlimited interpretability has led to “the weakening of the cogent force of reality.” In other words, what used to be considered facts are now taken as interpretations. Of course, many people, including many intellectuals, many philosophers, find this an alarming development. But it is a development of which you approve, and you have encouraged the development, to match it, of a style of thinking that is, in that same sense, “weak.” But can we conceive of a *strong* “weak thought”? Do we not need one now?

Vattimo: I believe that we may. In a strong theory of weakness, the philosopher’s role would not derive from the world “as it is,” but from the world viewed as the product of a history of interpretation throughout the history of human cultures. This philosophical effort would focus on interpretation as a process of weakening, a process in which the weight of objective structures is reduced. Philosophy can consider itself neither as knowledge of the external, universal structures of being, nor as knowledge of the external, universal structures of *episteme*, for both of these are undone by the philosophical process of weakening. That is, after the critique of ideology, after the Nietzschean critique of the notion of “things as they are” . . .

Zabala: After Freud?

Vattimo: After Freud, we can no longer believe that “being,” as a type of incontrovertible evidence, can be apprehended by us. With Marx, Nietzsche, and Freud, we are led to doubt all that appears to us the most obvious. If institutions like the papacy, an empire, newspapers, the media, define objective truths, philosophy must do precisely the opposite. It must show that truth is conversational. It is within conversational frameworks that preferences (as opposed to objective truths) can be delineated. It is in conversation that preferred interpretations can be proposed—and interpretations are always remarks about history . . .

Zabala: Does that kind of deconstruction—or, as you have called it, “destruction”—apply also to the rhetoric of the deconstructors? Should we not regard “God is dead!”—Nietzsche’s claim—as a description of things as they are?

Vattimo: “God is dead!” is an announcement, not a claim. It means, not that God does not exist, but that our experience has been transformed such that we no

longer conceive ultimate objective truths, and now respond only to appeals, announcements. When Nietzsche calls for a multitude of gods, we can understand him as calling for a polytheism of values. The call is thus not for a society with *no* values but for a society without *supreme and exclusive* values. On this model, cultures are complex conversations among varying conceptions of the world. Such dialogue can, and must not, shift into a dogmatic clash between conflicting truths. When Hitler exterminated 6 million Jews, I find it hard to believe that he did so on the basis of an “opinion.” His actions were, on the contrary, based on an “objective truth,” a “scientific fact”—and when a conversation begins to deteriorate into a clash between objective dogmas, “weak thought” has its peculiar part to play.

Zabala: In which case, science apparently requires weakening. When Heidegger claims that “science does not think,” has he achieved a weakening of science?

Vattimo: I think that Heidegger made that claim as a provocation. Nevertheless, there is something to it. Science is a discipline that does not itself pose the problem of historically determined truth. Science works within given historical contexts, its nature being to demonstrate or falsify propositions on the basis of criteria that it does not itself invent but simply improves, transforms. I am thinking, of course, of Kuhn’s paradigms . . .

Zabala: Kuhn! Discussing Kuhn in *Common Knowledge*—that’s carrying coals to Newcastle. Could we discuss another discipline—law—with respect to “weak thought”? In your essay “Fare Giustizia del Diritto,” you outline a philosophy of law that is based on a nihilistic substratum. By means of interpretation, law becomes an instrument for weakening the original violence of justice. Could you please explain how, within the frame of “weak thought,” you would suggest we regard justice and punishment? I ask especially because—in the aftermath of the events of September 11, 2001—the question has been repeatedly raised of how a “postmodern” thinker can conceive of evil, crime, and retribution.

Vattimo: *Fare giustizia del diritto* is an expression I used with the intention of exploiting a pun. The phrase means “to make law just,” “to fashion law into justice.” But it also means, though in a rather vague way, “to execute law”—to abolish the sacred aura, the ultimate and foundational authority, of justice. My argument began with an effort to reconceive law and justice outside the metaphysical framework in which judicial punishment is thought to reestablish a state of affairs defined as “right,” a situation now troubled by crime. I was also determined not to consider law as the formulation of a set of precepts founded on some essential structure—as is the case, for example, of “natural law.” The practitioner of

“weak thought,” the hermeneutic nihilist, “executes” law in the sense that, while he strips it of its sacred aura, he opens the way to more human considerations. The hermeneutic ontology that derives from Heidegger has primarily produced *critical, negative* perspectives and methods—Derridean deconstruction, for example. But in ethics, let alone in law, it seems to me urgent that we move beyond the state in which agreement is suspended—kept in a state of pure suspension. In any case, this aspect of deconstruction appears to derive primarily, not from hermeneutics, but from the influence of phenomenology (pure *epoché* seems to me pure Merleau-Ponty).

Zabala: But if we interpret justice against the background of nihilism, is the loss to justice not immense?

Vattimo: What we do lose in the dissolution of metaphysics is the idea that *in nature* there are a right and a wrong. Put it this way: given the dissolution of metaphysics, it seems to me that the only supreme principle to be propounded, both in ethics and in law, is *the reduction of violence*. According to Heidegger, metaphysics must be refused, not only because it produces a totalitarian and overly rationalist social structure, but also because the idea of *Grund*, of ultimate foundation, is an authoritarian idea. The notion of primeval evidence, of a *Eureka!*, of a moment in which I have reached bedrock, of a foundation at which no questions can or need be asked—that state, in which questions are lacking, is not the end product of violence, but its origin.

Zabala: Would that be your definition of violence?

Vattimo: I would say so. Philosophically, violence can only be defined as the silencing of questions. That may happen in brutal forms, but also in philosophical forms, as when a philosopher concludes that he has reached the origin of all problematics: an example is Descartes’s *cogito*. Obviously, metaphysics has not always been the origin of violence; but it is the case that the moments of greatest violence in history have always been justified by well-structured metaphysical pretenses. Burning heretics was a form of violence defended, in metaphysical terms, by a religion that professed an ultimate truth. Even with regard to modern theories of natural rights, there has been a close relationship—at least, historically—between metaphysics and violence. If philosophers of natural law cannot accept that the only authentic right is the right to be consulted on matters that concern us, and if they keep defining natural rights and laws in objective terms, we may always be vulnerable to outbursts of violence. The only right I would fight for is the right to express my opinion when I want to take part in a dialogue. But if I go up to someone who is profoundly convinced that one can

live perfectly well in a totalitarian society and I oblige him, by means of economic blackmail, to support democracy, what I am doing is violent; I must try to persuade him instead.

Zabala: And how, in that context, are we supposed to imagine justice?

Vattimo: I would say that the *unicuique suum* is a good basis for understanding justice, the one always used in law codes. I am not so sure, on the other hand, that there is a natural *suum*. Saying so would require reference to a specific idea of human nature, and that could lead to dangerous forms of violence. A typical example would be a case reported in Italy of a young drug addict who had been tied in a pigsty to prevent him from taking drugs. After having found him dead, his family claimed that they had tied him up for his own good. The individual's *suum* is, I would hold, his own freedom; or better, his capacity to determine his own sense of justice on the basis of an intelligible line of reasoning. The insane are a problem; the fetus, as yet unborn, is not a problem. Nevertheless, we must try resolving all such problems on the basis of forms of social tutelage. Let me explain myself: generally, we assume that a child, before attaining legal age, follows his parents' advice. Then we realize that the age shifts—once, the age was twenty-one, today it's eighteen, some day it will be sixteen. It is not so easy to settle who (and until when) must be protected from which others.

Zabala: Are there ways, in any case, to limit the violence inherent in making decisions on behalf of, or with respect to, others?

Vattimo: Of course. To put someone in prison, though, is always a form of violence, which is sometimes justified by the practical and procedural rationale that governs collective life. Law and justice don't always coincide completely. If justice means to give each what he or she deserves, we must admit that what each "deserves" is much more a historical than a natural determination. In other words, such determinations are closely related to, and due to, historical conditions and traditions. If one has inherited five castles, it is right that we recognize him as the legal owner of those castles, even if his ownership is due to the fact that his ancestors were stronger pirates than mine. The concept of *suum* thus has scant meaning, and it is important to bear in mind that the *suum* is historically conditioned; furthermore, that the *suum* is always pragmatic, an adjustment to the need for reducing violence as far as possible. A society in which the death penalty is in force, if it is regulated by precise laws and if the sentence may be appealed, is certainly less violent than a society in which the sentence of death is handed down by decree. Obviously, a society in which there is no death penalty is the least violent of all. I regard societies that lack the death penalty as more

just, because they respect the idea that the individual has the right to self-determination. My not asking the condemned prisoner his opinion regarding the fact that I have sentenced him to death is certainly more disturbing than my not asking his opinion about my condemning him to twenty years in prison. In the latter case, I am allowing him to question himself about his actions—to repent, to analyze his life, to understand the significance of what he has done. The reduction of violence, and the resultant increase in justice, derive from the progressively wider application of the principle of consensus, reciprocity, consultation.

Zabala: Luigi Pareyson argues, along the lines of our discussion here, that “of truth there is nothing but interpretation and . . . there is nothing but interpretation of truth.” If so, it becomes literally impossible, philosophically and juridically, for a judge to be absolutely impartial; and yet his or her responsibility is to apply the written law objectively. Should we conclude, then, that the existence of iniquitous laws is symptomatic of the law’s actual incapacity to embody justice?

Vattimo: I can accept a version of that formula: the judge is obviously not God. Hence the multitude of safeguards in place at trials—sometimes there are too many and they become an obstacle. A point can be reached at which the guarantees are so numerous that the primary aim of the trial (a judgment) cannot be arrived at or is blocked.

Zabala: Let’s take the case of the most recent American presidential election. Did not appealing the election results in Florida to the U.S. Supreme Court imply a need to ascertain divine truth?

Vattimo: Well, it certainly implied a *hunger* for absolute truth. But with reference to the case you mention, I would ask, rather, if all the legal procedures were properly followed. Justice is the respect for canonized, written law. If, in the case of traffic lights, I drive on red, am I violating the natural law? No. I am violating a law that regulates traffic, a law meant to prevent people from getting killed at intersections. The example of traffic lights, I would say, is representative of all legal systems. If, in the middle of a hot day in August, when the city is empty, I drive on red through an intersection, what I am doing is superimposing on the existing legal system a superior law, my own, that I believe comprehends the necessity and logic of existing traffic regulations. In New York, until not so long ago, people simply crossed streets when there were no cars; now, the police fine jaywalkers, because people came to understand that a respect for mere form reflects a more basic respect for elementary social law. Justice, in these examples, is a procedural system that exists in opposition to the potential chaos of individual choices. In the same

way, we may ask: Is it possible to prevent judges from expressing, in their judgments, their own personal and political opinions? Well, we may do so by increasing the number of judges called to judge any particular case. There will be right-wing judges and left-wing judges—the result will be forms of democratic self-government in the judiciary. Decisions will differ, and . . .

Zabala: However we improve the courts, justice will always be a “human, all too human” affair?

Vattimo: In this case, the “too” can never be too much. There are differing instances and different forms of justice; they cannot be compared and reconciled on the basis of their correspondence to some objective truth. Indeed, the concept of objective truth itself has always been imprecise, unclear. Even in the case of a murder, the objective truth about the facts is not ascertainable. All that we can do is reconstruct the facts in a way that satisfies the family of the victim, or society as a whole. As for the latter, it is society that holds that, were the murderer not punished, the risk of further murders would increase—and thus punishment appears to be more a readjustment, an accommodation, than it is an assertion about the case. To apply justice to human affairs is basically to adjust things . . .

Zabala: Adjust? Or *reduce* . . . ?

Vattimo: Yes, reduce, compromise, adjust things, in order to evade complaints and protests from the differing sides involved: in order to arrive at some kind of solution that may be acceptable to everyone. This is not always easy to do, and it is necessary to have a third party, a witness, a judge—but the entire community, which has delegated the judge to apply the canonized laws, must respect both those laws and the judgment. A judgment thus made is clearly intersubjective and limited, but also valid. Take a man who wants to buy a suit: he is not sure if he wants a blue one or a green one. So he tries on several and, in the end, he makes his choice. He knows perfectly well that from the point of view of eternity his choice is probably not right; but since there really are no eternal standards with respect to green or blue suits, his choice is not predetermined.

Zabala: It is, of course, useful to put the labors of judges in context. Nevertheless, we insist—do we not?—that “the law is the same for all.”

Vattimo: “Law,” in your aphorism, is a *procedure* applicable to all. Equality before the law means that everyone is treated in the same way on the basis of the same behavioral norms. Do such regulations correspond to an eternal truth? I don’t think so.

Zabala: You have written that to “execute law” means “to interpret—applying laws to real situations in order to amend them without violence, without imposing force.” And you say that this “does not mean exposing the implicit violence at the origin [of justice], nor does it mean to hide that violence with ad hoc adjustments; it means to progressively reduce violence.” Is that your notion of post-metaphysical justice?

Vattimo: When I mentioned the violent origins of justice and the desire to expose them, I was alluding primarily to an essay of Derrida’s. Derridean deconstruction creates a situation of suspense, an *epoché* of the faith in law. The origin of law is arbitrary. At the origin stands a king who usurped power. Still, it seems to me that, following the logic of secularization, it is important to acknowledge primeval violence *just because* it enables my understanding of successive events as a progressive attempt to displace the original void. On the other hand, in deconstruction, as also in Foucaultian thought, the originary violence of justice is evoked as if acknowledging its existence were a means of rebelling against it, a means of preventing it from overpowering us. There are anarchical overtones. In practice, Derrida’s or Foucault’s suspension of the faith in law would leave humanity with no procedural clue, and it runs the risk of idealizing a pure (and thus never-to-be realized) justice. The origin of states has always been violent. But this does not mean that, to constitute a state, violence is *necessary*.

Zabala: For example?

Vattimo: Take the question of a European constitution. There are political groups objecting that the birth of a European constitution is illegitimate because it will necessarily be the fruit of economic accommodations among the stronger countries. An Italian citizen on his way to a demonstration in Nice against the constitution said that “constitutions grow out of rebellions . . . and not in parliaments.” Does this mean that, in order to establish a constitution for the European Community, there has to be a traumatic event, a bloodletting? Arguments about the violent origins of law have ambiguous consequences. I tend to resist the idea that violence is a good solution; it is obviously preferable to follow procedures that can lead to the reduction of violence. Social groups can conceive of means for transforming the legal order that do not imply rebellion—there is the possibility of representational democracy. People can be represented and consulted. But once again, it is important to understand this point from the perspective of “ontological difference.” If we understand ontological difference as suspending the validity of *what is*, we will produce a negative theology, the most radical of anarchies, corresponding in religion to the mystic state. The mystic’s idea is that there is available to us a means of contact with the First Principle.

Applied to justice, the result is antinomian: the fact of violence is taken to invalidate all laws. In response, all I can do is oppose the violence or withdraw from the game completely (becoming, again, a monk or mystic). Or else, because canonical norms no longer correspond to the state of affairs, I can oppose those norms with violence of my own. It is important, in other words, that there be norms for the modification of norms. Constitutions must formalize processes that provide for the possibility of internal modification.

Zabala: Modification, yes. But then, deeper transformations are impossible?

Vattimo: Take the case of constitutional reform in Italy. Can we “transform” the first article of the constitution, “Italy is a democratic republic”? The Italian constitution does not provide a legal basis for a referendum in which citizens can choose again between a monarchy and a republic. At the origin of anything there is a series of short circuits, and the origin is not easily justifiable. Which is not to say that there is anything wrong with laws whose origin is arbitrary. But there are, therefore, always matters that are settled—and always something that could be improved.

Zabala: Or, in Freud’s language: the patient will never completely resolve his problems but will rather attain, with the aid of analysis, a state of peaceful coexistence with himself.

Vattimo: Of course. He will attain a state of tranquility, and that is what “constructions in analysis” really means—the opposite of a total and radical revelation. What I am hinting at, metaphysically, are ways leading the individual to accept “being” as an *event*, and not as an originary *structure, given once and for all*. The point is worth making both in politics and in psychology.

Zabala: In your essay on law and justice, you quote Nietzsche to the effect that “the progressive knowledge of the origin increases the insignificance of the origin.”

Vattimo: Yes. We can never efface the fact that the origin is violent; to do so, we would have to efface our finite nature. But we can secularize our origin, or consume it progressively. Think again of the notion of history as a process of weakening. Writing history is a process by which the peremptoriness of reality is reduced and in which reality becomes a set of shared images—a discourse. (Though, obviously, I do not believe that the role of the historian is limited to this process.)

Zabala: Let's move to the problem of the accused at a trial, of his opportunity for repentance, of his responsibility . . .

Vattimo: Somewhere in his *Philosophy of Law*, Hegel says that it is the right of a prisoner to be put to death, once the sentence of death has been issued. No one will ever convince me of the correctness of this proposition. The concept of punishment, of a judicial sentence, implies an imposition of suffering that I cannot accept unless it leads to religious repentance, unless its use goes beyond mere punishment. Is there such a thing as an authentic guilt that formal justice can succeed in exposing and condemning? I have quite a few doubts on this point. Take the case of fiscal justice—the game that a citizen is required to play in order to keep as much of his money as possible without violating any written law. Must I absorb the tax laws into my own personal moral duties? Why should I? Should I respect all the laws of my city unconditionally, as Greek ethics would require? Should I do so despite the fact that some laws were conceived in order to favor members of a specific social class? We may say that I respect the tax laws of my country in order to avoid legal problems; it is, though, entirely compatible with my ethics to take advantage of all existing ways to pay the least amount of tax. Or again, take the case of murder. I would not define myself as a murderer if someone were to steal into my house and I were to use my gun against him out of fear, thinking that he also has a gun. If the intruder were to get shot, I would not feel guilty, even though I would be, in law, an unintentional murderer. In the event, killing would be for me the best choice; I would have to defend myself. And so the question that I ask myself continually is this: Isn't evil simply guilt—a guilty feeling?

Zabala: How would you compare what you're saying with Schleiermacher's advice: that everyone should write his own Bible—that everyone, in other words, should continuously rewrite the law? Why not rewrite the whole law?

Vattimo: It is clearly impossible, and that is why societies institute legal systems. We are incapable of living alone. Man, *logon echon*, is he who possesses discourse (not he who possesses reason). This notion explains the limits of the legal system in which we live. I conform my behavior to the laws, not because I agree with them unconditionally, but because I prefer living in this society to living in another, more primitive one. Here, I have my friends, my personal things, and so forth. The concept of contingency is pertinent: I belong to a specific group historically, and not absolutely. Die for my country? I would fight to defend a historical and social order—if someone were to try exterminating all Italian speakers or destroying the Italian democratic system, I would defend my language and

culture. On the other hand, if it seemed necessary, for the benefit of my country and its citizens, that Italy become the fifty-first American state, despite all the respect I have for my tradition and language, I would have no problem with that. I often say that I feel Italian only when the national soccer team plays or when I sit down to eat, because these things are part of my tradition.

Zabala: Are these attitudes of yours a product of multiculturalism?

Vattimo: I am thinking of Europe, which I believe in. I also believe in the idioms of local traditions. I would not, though, fight for the supremacy of the Piedmont dialect over those of the rest of Italy. I would be sorry if it were to disappear, or if Piedmont cuisine were overtaken by fast-food culture . . . but in a supranational state, one with stronger cohesion than that of the European Community today, dialects and local traditions will be able to survive. National languages and national traditions will become “regional” traditions of Europe also, and will survive as such.

Zabala: The more cohesion, the more flexibility? The more strength, the more weakness?

Vattimo: In order to be truly pluralistic, a democratic society has to leave space even for those who don’t want to take part in the social conversation. Society must tolerate even those who don’t share the common binding principles. A real democracy would make space for such individuals. They should respect the behavioral norms of society, but if they want to live on charity, we should give them as much as they want, for as long as they want. Why should we oblige them to take on the customs of the middle class, and comforts such as television and elevators, if they really want to live as marginal members of society?

Zabala: You appear to be endorsing what Nietzsche defined in terms of nihilism. Or should we conclude that ours is already a nihilistic society?

Vattimo: Of course we should. A society is nihilistic not only when it loses its faith, but also when it allows for the existence of many other faiths. When Nietzsche declares that God is dead, he doesn’t only mean that there are no longer supreme values; he also means that a multitude of values has taken their place at the ruined foundation. I think that this point is of great importance. The conviction of a degree of unity was accompanied by a degree of monoculturalism—and this may be rational, but it is nonetheless “mono.” Today we are aware that, in imposing this kind of universal monoculture, we do violence to others. We need to structure a humanity in which a multitude of deities may coexist. And

from the juridical point of view, we need to recognize the strictly procedural (as opposed to natural and objective) character of law. We can still use the expression “natural law” with reference to behavioral norms that are *historically* natural. I find it quite natural to buy Christmas presents in December; but if I were to live in a society in which Christmas takes place in August, I would find it equally natural to buy presents in August. “Natural law” means those procedural regulations that a society considers natural for its uses and customs. Obviously, one can criticize the law and, when necessary, change it. In a weak conception of natural law, what proceeds on its own—automatically—is natural. When it no longer proceeds on its own, reasons must be found to modify it or confirm it.

Zabala: You have just presented, in your own terms, weak versions of “natural law,” “justice,” “evil.” You have even redescribed “nihilism” in a way that isn’t so potent; isn’t unsettling. But isn’t metaphysics the real challenge? Is it, can it ever be, weak?

Vattimo: Metaphysics tends to ask the question, “Why ‘being’ rather than nothingness?” Since there is no definitive answer, the question signifies a confutation of the very possibility and creates conditions for the suspension of metaphysics. “Being” lacks a reason. There is no reason sufficient to explain why “being” is—and discovering this weakens not only the question and not only metaphysics, but the discovery weakens “being” itself. If “being” had a strong reason to be, then metaphysics would have significance, would have strength. But as things are, “being”—which never permits us to answer the question “Why ‘being’ rather than nothingness?”—is historical and casual, happened and happening.

Zabala: Then wouldn’t you agree with Derrida’s notion that we should let go of “being”—that we should disrupt any and all talk of it?

Vattimo: Not at all. By no means.

Zabala: Why? Because that would be falling back into metaphysics?

Vattimo: Of course. It would be like announcing that the metaphysical problem is meaningless, while the announcement itself is a metaphysical dissolution of the problem. It’s an apparently strong move whose result is, unsurprisingly, nothing. Nothing is typically the result of strength. An alternative is “weak thought”—or as I called it in a *Common Knowledge* article years ago, “optimistic nihilism.”¹

1. Gianni Vattimo, “Optimistic Nihilism,” *Common Knowledge* 1.3 (winter 1992): 37–44.